

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PAKISTAN

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Pakistan, grounded in the provincial environmental approval system, public hearings, the Environmental Tribunals, and the country's constitutional public interest litigation tradition

This guide uses the Pakistani legal terms you will actually encounter (the IEE and the EIA, the provincial EPA and its approval, the public hearing, the Environmental Tribunal and the Environmental Magistrate, the writ petition, Article 199 and Article 184(3), the judicial commission, and so on), each explained in plain language where it first comes up. Since devolution, the governing statute differs from province to province; the core mechanics below apply, but always check the law of your province.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Urdu terms are given with a short English gloss.

A note on money. Budgets in this guide are in Pakistani rupees (PKR). Every figure is indicative — Pakistani community campaigns are frequently run at very low cost, because the decisive route is a writ petition and the country has a strong public-interest bar. Treat the ranges as a menu, not a bill.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Pakistan — and the country's courts have gone further than most in the world, so knowing how to reach them is most of the battle. Pakistani law requires development projects to obtain environmental approval from the relevant **provincial Environmental Protection Agency**, on the basis of either an **Initial Environmental Examination (IEE)** or, for the more damaging categories, a full **Environmental Impact Assessment (EIA)** — and the EIA process includes a **public hearing** and a period for comment. Breaches are prosecuted before dedicated **Environmental Tribunals**. But the decisive lever sits above all of that. In **Shehla Zia v WAPDA**, four residents wrote a **letter** to the Supreme Court objecting to a grid station on a residential green belt; the Court treated it as a human rights petition under **Article 184(3)** and held that the **right to life** and the **right to dignity** include the right to a **clean and healthy environment**, importing the **precautionary principle** into Pakistani constitutional law. That judgment is the foundation of everything since — and the courts have built on it, holding in the **Salt Miners** case that

water free from pollution is part of the right to life, and in **Asghar Leghari**, brought by a single farmer, that the government's failure to implement its own climate policy offended fundamental rights, appointing a **Climate Change Commission** to supervise implementation.

That is a genuinely powerful toolkit, and Pakistani courts have used remedies — standing commissions, continuing supervision — that few others attempt. The honest counterweight is heavy. Since the **18th Amendment** devolved environment to the provinces, the country has four provincial regimes plus federal arrangements, and devolution was not matched by consistent institutional capacity; provincial agencies are under-resourced and, by common assessment, EIA administration has weakened rather than improved; enforcement is poor, with Pakistan ranked at or near the bottom of global air-quality rankings and much of Punjab and Sindh smothered in smog each winter; and the gap between a judgment and what happens on the ground is the country's chronic failure — which is precisely why its courts invented supervisory commissions. Communities across Pakistan — facing housing schemes on farmland, cement plants and quarries, coal and power projects, industrial effluent, riverfront and canal-side development, deforestation, and urban projects that take green belts and trees — have organised against exactly this.

What "winning" realistically means. Rarely a permanent, tidy national "no". More often: an approval refused, conditioned, or set aside; **a stay from a High Court halting works** while a petition is heard; a **judicial commission** appointed that keeps supervising for years; a project relocated or redesigned; an Environmental Tribunal penalty that makes an operation uneconomic; or a precedent established that other communities use. Each has happened. The realistic goal is to build a documented record, get into the **High Court** early enough to stop irreversible work, and then sustain pressure through the supervision phase — because in Pakistan the order is the beginning of the work, not the end.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down which province governs, whether an IEE or EIA applies, who approves it, and the deadlines.
2. **Documentation** — build an evidence record strong enough for the public hearing, the Tribunal, and a writ petition.
3. **Local opposition** — organise a durable community movement, which supplies petitioners, evidence, and the persistence for the supervision phase.
4. **Legal challenges** — use the approval process and public hearing, the Environmental Tribunal, and above all the **writ petition** under Article 199 or 184(3).
5. **Media strategy** — generate coverage that raises the political cost and, crucially, exposes non-implementation.

No single step wins alone. In Pakistan the combination that works is **a documented record plus an early writ petition**, sustained through supervision.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Pakistan's system is under-resourced, devolved unevenly, weak on enforcement, and slow to implement what courts order. Assessing that honestly helps you choose the right tools: the strongest routes are a rigorous intervention at the **public hearing**, a **writ petition** in the High Court with a request for interim relief, and — where the harm is continuing — an application for the court to appoint or activate a **commission** to supervise. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including the implementation gap.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — in Pakistan it matters especially, because it tells you **which province's law applies**, whether you get a public hearing, and the deadlines. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, how long to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Pakistan is a **federation** of four provinces plus the Islamabad Capital Territory and other administered territories, with districts and local governments beneath. The single most important structural fact is that, since the **18th Amendment to the**

Constitution in 2010, "environmental pollution and ecology" is a provincial subject: the old federal law has been adapted province by province, so **the statute that governs your project depends on where you are.**

The three-part structure — and which one governs you

The provinces. Each province now has its own environmental statute and its own agency: the **Punjab Environmental Protection Act 1997**, substantially amended in 2012; the **Sindh Environmental Protection Act 2014**; and equivalent legislation in **Khyber Pakhtunkhwa** and **Balochistan**. Each has its own **Environmental Protection Agency (EPA)** and its own IEE/EIA regulations, broadly modelled on the federal originals but not identical.

The federal level. Pak-EPA operates for the **Islamabad Capital Territory** and federal matters, and the original **Pakistan Environmental Protection Act 1997** and the **IEE/EIA Regulations 2000** remain the template from which the provincial regimes derive. **Climate change was retained federally**, with a dedicated federal ministry.

Which one is "yours"? This is the first question. Ask: **which province — or ICT — is the project in?** Which statute and which EPA govern it? Which set of IEE/EIA regulations applies? Getting this wrong wastes months, and objections filed with the wrong agency achieve nothing.

The bodies that decide — and what each one controls

The provincial EPA. The environmental regulator: it screens the project, reviews the **IEE** or **EIA**, arranges the **public hearing** for EIAs, and issues the **approval** — with conditions — or refuses it. It also enforces the **National Environmental Quality Standards (NEQS)**, receives self-monitoring reports from industry, and can issue notices.

The line departments and approving authorities. Environmental approval is not the project approval: a scheme also needs its land, planning, building, and sector permissions from development authorities, local government, and the relevant departments. Each is a separate decision and a separate opportunity.

The Environmental Tribunal. A specialised judicial forum established under the Act with **exclusive jurisdiction over specified environmental offences**. Its proceedings are deemed judicial proceedings, and appeals lie to the **High Court**. Historically tribunals sat at Lahore and Karachi covering multiple provinces, with an intention to establish one in each province — check where yours sits.

Environmental Magistrates. Senior civil judges designated under **section 24** of the Act to try certain contraventions, with appeal to the **Court of Sessions** — a lower-level, faster route for some offences.

The High Courts and the Supreme Court. The most important forums in practice. The **High Court** exercises writ jurisdiction under **Article 199**, and the **Supreme Court** has original jurisdiction under **Article 184(3)** in matters of public importance involving fundamental rights. Several High Courts operate **green benches** dedicated to environmental matters.

How a decision is actually made — the journey of a project

Under the provincial regimes the path is roughly:

1. **Screening.** The project is checked against the schedules to the IEE/EIA regulations. **Schedule I** projects require an **Initial Environmental Examination**; **Schedule II** projects — the larger and more damaging categories — require a full **Environmental Impact Assessment**. Which schedule applies determines how much scrutiny and how much public process you get, so **challenging a project filed as an IEE when it should be an EIA is a real strategy**.
2. **Filing and review.** The proponent files the IEE or EIA with the provincial EPA, which reviews it against the regulations and the NEQS. Copies are typically made available for inspection, and the agency may seek comments from other departments.
3. **The public hearing — your formal moment.** For an EIA, the regulations provide for **public participation**, including a **public hearing** and a period for written comments. Notices are published, and the agency is expected to consider what is said. **This is the single formal opportunity most communities miss**, because notice is often thin and the window short.
4. **Decision.** The EPA approves — usually with conditions — approves subject to modification, or rejects. Approval is required **before** the project may be commenced, and conditions are legally binding.
5. **Compliance and enforcement.** The proponent must comply with conditions and the NEQS, and self-monitor and report. Violations can be prosecuted before the **Environmental Tribunal**, and notices can be issued by the EPA.

Alongside this, the developer needs its land, planning, and sector approvals — each with its own process, and each separately challengeable in the High Court.

The rulebook — the policies that decide the outcome

- **The provincial Environmental Protection Act and its IEE/EIA regulations.** Was approval required and obtained; was the correct schedule applied; was a public hearing held; were conditions imposed and are they being met?
- **The Constitution. Article 9** (right to life) and **Article 14** (dignity), which the Supreme Court held in **Shehla Zia** to include the right to a clean and healthy environment; **Article 199** (High Court writ jurisdiction); and **Article 184(3)** (Supreme Court original jurisdiction in fundamental-rights matters of public importance).
- **The precautionary principle and sustainable development.** Imported into Pakistani constitutional jurisprudence by **Shehla Zia** and applied since — genuinely usable arguments, not decoration.
- **Planning, land, and local government law.** Master plans, zoning, green belts, and building regulations, which are frequently where a project is most obviously unlawful.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Pakistan faces acute pressure to build housing, power, and infrastructure for a very large and fast-growing population; land on the fringes of major cities is enormously valuable, which drives the conversion of farmland, green belts, and floodplains into schemes; development authorities are themselves promoters as well as regulators; provincial agencies are small relative to what they must oversee; and the environmental study is commissioned and paid for by the proponent. None of this is inherently unlawful, but it explains the default lean toward approval — and why the community's decisive lever is the **constitutional writ**, not the administrative process.

The overseers — who watches the decision-makers

- **The High Courts and their green benches** — the principal forum, with power to suspend works, quash approvals, and supervise.
- **The Supreme Court under Article 184(3)** — for matters of public importance affecting fundamental rights; the forum that decided **Shehla Zia**.
- **Judicial commissions** — a distinctive Pakistani remedy: courts have repeatedly appointed standing commissions to supervise implementation, including on solid waste, clean air, urban environment, smog, and — in **Asghar Leghari** — climate policy.
- **The Environmental Tribunals and Environmental Magistrates** — for offences, penalties, and closure.
- **The provincial ombudsman (Mohtasib) and the Auditor-General** — maladministration and public money.
- **A strong environmental bar and civil society** — Pakistan has experienced environmental lawyers and organisations who have built this jurisprudence and regularly act for communities.

Naming and using the right body matters: in Pakistan the most consequential early judgment is usually **how fast you can reach a High Court with a documented record**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Pakistani and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Pakistan sits inside the table: **the writ petition is the highest-yield action available**, standing is generously interpreted for genuine public-interest matters, and the courts have a proven willingness to suspend works and appoint supervisory commissions — but obtaining an order and obtaining compliance are two different campaigns.

Individual Step Success Rates

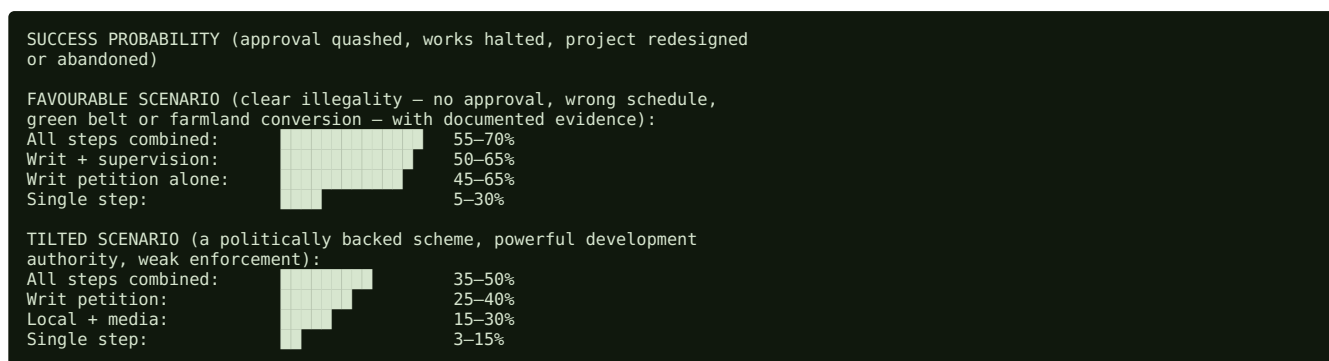
Approach	Success Rate	Timeline	Cost (PKR)	What "Success" Means
Documentation only	5–10%	1–3 months	low	Project slowed; basis for other steps
Local opposition only	20–30%	6–24 months	low	Local pressure; agency takes notice
Objections / public hearing	15–30%	1–3 months	low	On record; conditions imposed or refusal
Complaint to the provincial EPA	15–30%	1–6 months	low	Inspection, notice, or enforcement
Environmental Tribunal	25–40%	12–36	moderate	Penalty, closure, or restraint of an operation

		months		
Writ petition (High Court)	45-65%	3-24 months	low-moderate	Notice issued; stay on works ; approval set aside
Petition seeking a judicial commission	40-60%	6-36 months	low-moderate	Commission appointed; continuing supervision
Media only	15-25%	1-6 months	low	Public knows; pressure rises
Docs + local opposition + media	30-45%	6-18 months	low-moderate	Pressure plus stronger case
Writ + supervision follow-up	50-65%	12-48 months	moderate	Order and partial implementation
All steps combined	55-70%	12-48 months	moderate	Approval quashed, works halted, project redesigned or abandoned

Key insight: all steps together are far more effective than any single one — and the multiplier in Pakistan is the **constitutional writ**, because the courts accept public-interest petitions, will restrain works quickly, and have a repertoire of remedies including standing commissions. The distinctive Pakistani advantages are **Shehla Zia's** constitutionalisation of environmental rights, the **precautionary principle** as usable doctrine, **green benches**, and the **judicial commission** as a supervisory device. The distinctive disadvantage is that **implementation lags badly** — which is why the table separates "order granted" from "order granted and implemented".

A note on legal cost: objections, complaints, and public-hearing participation are essentially free. Writ petitions are comparatively inexpensive to file, and Pakistan has an experienced public-interest bar that has carried the country's landmark environmental cases, often without charge to communities. The costs that matter are technical evidence — laboratory testing, an air-quality or hydrology assessment — and the sustained effort of monitoring compliance for years.

Effectiveness Visualization



How to read this honestly. In Pakistan the strongest legal facts are usually **plain illegality**: commencing work **without approval**, filing an **IEE where the regulations require an EIA**, building on land the master plan protects as green belt or agricultural, felling trees without sanction, or **breaching approval conditions and the NEQS**. These are documentable, the law is explicit, and the courts have acted on them repeatedly. What is far harder is making the order bite: agencies are under-resourced, developers proceed while appeals run, and the country's environmental indicators have worsened even as its jurisprudence has advanced. That contradiction is the essential fact about Pakistan — a world-leading bench sitting above a weak administration — and it is why the courts developed **continuing supervision**. Plan for two campaigns: win the order, then spend years making it real.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — the writ petition ranks first; it is the action that actually stops projects.
2. **Documentation** — because the winning cases turn on demonstrable illegality, the evidence is the case.
3. **Local opposition** — supplies petitioners, witnesses, and persistence through the supervision years.
4. **Media** — the most effective instrument for exposing non-compliance and creating pressure to enforce.
5. **The administrative route** — public hearing, objections, and complaints: cheap, quick, and often the fastest way to trigger an inspection.

Winning Pakistani campaigns combined a careful record, an early writ petition brought with experienced counsel, sustained media, and years of follow-up on implementation.

What Pakistani Campaigns Actually Show

A few patterns recur. **The courtroom door is unusually open** — in **Shehla Zia v WAPDA** a letter from four residents about a grid station on a residential green belt was treated as a petition under **Article 184(3)**, and the Supreme Court held that the rights to life and dignity include the right to a **clean and healthy environment**, importing the **precautionary principle**; the judgment also established an expectation that agencies give notice and take comment on projects posing public risk. **The right to life covers water and pollution** — in the **Salt Miners** case the Court held that water free from pollution is part of the right to life, ordering remedial measures and halting mining that threatened a catchment. **Courts supervise rather than merely declare** — in **Asghar Leghari**, a farmer's petition over the government's failure to implement its climate policy, the Lahore High Court treated the case as a **rolling review or continuing mandamus**, expressly comparing it to the Philippine writ of *kalikasan*, summoned ministries, and appointed a **Climate Change Commission**; courts have appointed comparable commissions on solid waste, clean air, the urban environment, and smog. **But administration lags jurisprudence** — devolution after the 18th Amendment was not matched by consistent institutional development, EIA administration is widely regarded as having weakened, and Pakistan has ranked at the very bottom of global air-quality indicators. The through-line: **Pakistan gives you an extraordinary bench; the community must supply the record and the stamina.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, agricultural land, a **green belt** or park, mature trees, a canal or river, a katchi abadi or settlement), and what the project would do to it. Obtain the **IEE or EIA** from the provincial EPA and list every admitted impact with its page reference. Pay particular attention to **air quality, water and effluent, agricultural land conversion, tree felling, and flood risk from building on floodplains and canal banks** — the fact patterns Pakistani courts have engaged with most.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) **which province or the ICT** governs, and therefore which statute and which EPA; (b) whether the project is **Schedule I (IEE)** or **Schedule II (EIA)** — and whether the filing matches the project's true scale; (c) which **development authority, local government, or line department** grants the land, planning, and building permissions; and (d) which **High Court** has territorial jurisdiction. Name the officials and authorities.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: **approval refused or conditioned**; work restrained by a **High Court stay**; approval **set aside on writ**; a **development authority permission quashed** for conflicting with the master plan; an **Environmental Tribunal** penalty or closure order; or a **commission** appointed that supervises and forces change. Map them and pursue at least two in parallel.

Question 4: When Is the Decision Final?

Diarise the deadlines: the **public hearing** and comment window, which are short and often thinly advertised — assign someone to watch for the notice; the **approval decision**; and, for court action, the practical rule that a **writ petition should be filed promptly, and immediately** where machinery is on site, because interim relief is what prevents irreversible harm. Appeals from Tribunal decisions have their own statutory periods. Confirm all periods with a lawyer, and do not let evidence-gathering delay a petition when trees are being felled or foundations poured.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which company or housing-scheme sponsor is behind the project, how the land was acquired and from whom, whether the scheme is approved under the applicable master plan, and whether a public authority is both promoter and regulator. Use public sources — the **Securities and Exchange Commission of Pakistan**

company register, land revenue records, development authority approvals, and master plans. Build a dated, sourced timeline, and route allegations properly rather than publishing unproven claims.

Output of Step 1: a one-page fact sheet with the project's exact description, the governing province and statute, the schedule and approval status, every other permission required, the competent High Court, the deadlines, and the money map.

Worked example: which lever is actually open

Suppose a housing scheme is being developed on agricultural land beside a canal on a city's edge, with trees already being felled and no visible approval. Working the questions: **Q1** — the site is farmland and mature trees adjoining a watercourse; felling has begun. **Q2** — the province's Act and EPA govern; a scheme of this size is likely **Schedule II**, requiring a full **EIA with a public hearing** — so the first question is whether any approval exists at all, and whether it was filed as an IEE. **Q3** — the live levers are: a **complaint to the provincial EPA** to trigger inspection and a stop notice; a **writ petition** in the High Court citing absence of approval, conflict with the master plan, and the right to a healthy environment, with an urgent request for a **stay on felling and construction**; and, if pollution follows, an **Environmental Tribunal** prosecution. **Q4** — you act at once, because the trees will be gone in a week. **Q5** — land revenue records and the development authority file show how the land was converted. In an afternoon you know that **the writ petition with a stay request is your fastest and strongest card**, and that the EPA complaint should be filed the same day to create the record.

STEP 2: DOCUMENTATION

Documentation separates a campaign the agency and the courts take seriously from one dismissed as complaint. In Pakistan it has a specific character: because the winning cases usually turn on **demonstrable illegality** — no approval, the wrong schedule, a breach of the master plan, felling without sanction, conditions ignored — your evidence is less about contested modelling and more about **proving with dates and documents what was permitted and what was actually done**. And because implementation is the chronic weakness, documentation is not a phase you finish; it is a discipline you maintain through the supervision years.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — and, in Pakistan, prove what the land was legally **designated** to be.

The designation. Obtain the **master plan, zoning, or land-use classification** for the site. Whether the land is agricultural, green belt, park, or amenity is frequently the decisive fact, because building contrary to the plan is a clean illegality that courts act on. Get the map and the notification.

Trees, land, and water. Photograph the site with dates and locations: mature trees and their number, the agricultural land in use, the canal, drain, or river and its banks, and any settlement. Tree-felling counts and canal-bank encroachment are concrete, quotable facts.

Air, water, and health. Where a polluting installation is involved, document baseline conditions — visible emissions, water used for drinking and irrigation, and health complaints among nearby residents — with dates.

Homes and livelihoods. Document the settlements affected, the households, farming and grazing, and anyone facing displacement.

How to hold it. Keep everything dated, geo-referenced, and backed up. Build a chronology — "on this date the plan showed agricultural land; on this date felling began; on this date approval was still not on the register" — because that chronology is what a High Court acts on.

LAYER 2: IMPACT ANALYSIS

Show what the project would do, and — equally important — whether it is lawful at all. Catalogue four things:

1. **Approval status.** Does the project have **environmental approval** from the correct provincial EPA? Was it filed as an **IEE** when the regulations require an **EIA** for a project of that scale? Was a **public hearing** held? Commencing without

approval, or on the wrong instrument, is the cleanest ground available.

2. **Condition and NEQS compliance.** Where approval exists, obtain the **conditions** and document every breach — effluent treatment not installed or not running, emissions exceeding the **National Environmental Quality Standards**, works beyond the approved footprint.
3. **The study's own admissions and gaps.** Mine the IEE or EIA for conceded impacts, and identify what it omits — especially **cumulative effects** with the many other schemes and installations typically present nearby, and **flood and drainage** consequences of building on floodplains and canal banks.
4. **Planning legality.** Whether the scheme conflicts with the **master plan**, lacks development-authority approval, or involves unlawful conversion of agricultural land.

Get expert eyes on it. A critique carries far more weight when a qualified professional signs it. Pakistani universities, engineering and planning professionals, and environmental organisations can review air, water, drainage, and planning evidence, and an independent **laboratory test with a chain of custody** is worth a great deal in Tribunal proceedings and before a High Court.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because this is how the right-to-life argument becomes concrete — and it is the argument Pakistani courts have accepted since **Shehla Zia**. Document:

- **Health** — respiratory illness where air quality is at issue, waterborne disease where effluent enters channels used by households, and the specific populations exposed, with clinic evidence where obtainable.
- **Economy and livelihoods** — the value of the farmland, orchards, or grazing lost, effects on tenants and labourers as well as owners, and the cost of replacing water or fuel.
- **Community and displacement** — households displaced, amenity and green space lost, and the flooding risk transferred onto neighbouring settlements.

Package this layer twice: a rigorous version for the EPA and the courts, and a plain-language one-page version **in Urdu and the regional language** for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Weeks 1-4)** — photograph the site now, and obtain the **master plan and land classification**; where felling or earthworks are under way, this is urgent.
- **Phase 2: Legality (Weeks 2-8)** — establish approval status, schedule, and conditions; request the file.
- **Phase 3: Health/Economic (Months 2-4)** — quantify the human and economic stakes.
- **Phase 4: Compliance (ongoing)** — maintain the dated record after any order, because this is what the supervision phase runs on.

Common Documentation Pitfalls (What Fails)

- **Photographing too late** — felling and earthworks are fast and irreversible.
- **Not obtaining the master plan** — the designation of the land is often the decisive document.
- **Not checking approval status first** — absence of approval, or the wrong schedule, is the fastest ground.
- **Missing the public hearing** — notice is thin; assign someone to watch for it.
- **Ignoring conditions** — an approval is not the end; its conditions are enforceable.
- **Stopping after the order** — the compliance record is what makes supervision work.

Documentation Budget Breakdown (PKR)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Photographic and GPS baseline	minimal	modest
Master plan, land records, EPA file copies	modest (official fees)	modest
Laboratory testing (water/air/effluent)	modest	moderate
Expert/academic review	often free	moderate
Legal representation	often free (public-interest bar)	moderate
Printing, travel, outreach	modest	modest

Most of this can be done cheaply, which is a real Pakistani advantage: the decisive evidence is usually **photographs, the**

master plan, land records, and the approval file — not expensive modelling.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a Pakistani case is documentary and obtainable. The job is knowing which office holds which record.

The provincial EPA. The **approval file** — the IEE or EIA, the notice and record of any **public hearing**, the approval letter and its **conditions**, inspection reports, notices, and any self-monitoring reports filed by the proponent. This is your first request, because approval status often decides the case.

The development authority and local government. The **master plan**, zoning notification, land-use classification, scheme approval, building and demolition permissions, and tree-felling sanction. For urban schemes this is frequently where the illegality is plainest.

Land revenue records. Ownership, tenancy, and the record of any conversion of agricultural land, held at the district revenue office.

Irrigation and canal authorities. For anything on or near a canal, drain, or river: alignment, right-of-way, and encroachment records.

Company and money. The **Securities and Exchange Commission of Pakistan** register for company and directorship details, and public procurement records where a public body is involved.

Court records. Earlier judgments and standing **commission** reports concerning the same city, sector, or industry — Pakistan's environmental jurisprudence is deep, and an existing direction being flouted is a powerful ready-made ground.

How to force a document open. Pakistan has **right-to-information legislation at both federal and provincial level**, with designated public information officers, statutory response periods, and appeal to an **Information Commission**. Provinces including Punjab, Sindh, and Khyber Pakhtunkhwa have their own transparency laws, and these are genuinely effective for obtaining approval files and master plans. The template at Section 8E uses this route.

Free and low-cost help. Pakistan has an experienced environmental bar and organisations that have built the country's jurisprudence, alongside university researchers and professional bodies of planners and engineers. **Approaching an environmental lawyer or organisation early is the highest-value single step**, because they can convert your record into a writ petition and know which High Court bench hears these matters.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the responsible provincial agency, and the local-ally entries point you to the lawyers and organisations already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Pakistan, organised local opposition matters for a particular reason: the courts are open and standing is generously interpreted, so the binding constraint is rarely access to justice — it is **evidence, petitioners, and endurance**. A community that photographs the felling as it starts, obtains the master plan, produces credible petitioners, and stays mobilised through the years of supervision that follow an order is a community that actually changes outcomes. Pakistan also has a strong tradition of civic action through residents' welfare associations, katchi abadi and tenants' organisations, farmers' bodies, bar associations, and professional institutes, which have repeatedly joined environmental fights.

Three principles carry special weight here: **speed** (felling, earthworks, and construction move fast, and the first stay matters more than months of later effort); **credible petitioners** (residents directly affected, plus a welfare association or an established organisation, make a petition harder to resist); and **endurance for supervision** (in a system where courts appoint commissions precisely because implementation fails, the community is the real monitoring body).

PHASE 1: FOUNDATION (Weeks 1-6)

Step 1a: Start with the most affected — and start photographing. Reach the households whose land, homes, water, or air are at stake, and on the same day begin a **dated photographic record**. Where trees are being felled or

earth moved, this is the single most valuable early action.

Step 1b: Affinity groups by concern. Let people join through what they care about — farmland, trees and green space, air quality, water, drainage and flooding, displacement. Flooding and drainage unite people quickly where a scheme blocks a natural channel.

Step 1c: Form the committee, and contact an environmental lawyer immediately. Constitute a **residents' or action committee** with clear aims and minuted decisions — a registered welfare association can also be a petitioner. In parallel, approach an environmental lawyer or organisation: they can establish approval status, obtain the file, and prepare a **writ petition** with a stay application.

PHASE 2: PUBLIC LAUNCH (Weeks 4-12)

Step 2a: Community meeting. Hold a public meeting to inform, decide collectively, and mandate representatives; bring the photographs, the master-plan extract, and what you have learned about approval status.

Step 2b: Materials and the written complaint. Prepare one-page, factual, sourced materials in **Urdu and the regional language**, and file a **written complaint with the provincial EPA** requesting inspection and confirmation of approval status (Section 8B). Keep the received copy — a dated complaint later proves the agency knew.

Step 2c: Turn out for the public hearing. Where an EIA is being processed, a **public hearing** must be held. Attend in numbers, submit **written objections** and keep proof, and document the hearing itself — who attended, what was said, whether objections were recorded. A hearing conducted as a formality is itself a ground.

Step 2d: Media at launch. Time it to the hearing or the complaint so coverage and official action reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Broaden the alliance. Bring in neighbouring localities and downstream communities, farmers' organisations and tenants, environmental groups, professional bodies of planners, architects and engineers, academics, the local **bar association**, and journalists. Professional bodies matter especially where the case turns on a master plan or drainage.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging before disagreements arise, and settle who the named petitioners are, who instructs counsel, who holds the evidence archive, and who speaks to the press.

Step 3c: Coordinated work. Joint objections and complaints, a joint petition, shared testing and experts, and a coordinated approach to the EPA, the development authority, and the district administration.

PHASE 4: SUSTAINED PRESSURE AND SUPERVISION (Months 6 onward)

Step 4a: Support the litigation, then monitor. Once a stay or direction issues, the campaign's job changes: **document compliance.** Photograph monthly from fixed points; record whether felling stopped, whether treatment plants run, whether construction resumed. Where a **commission** is appointed, feed it evidence — commissions depend on exactly this material.

Step 4b: Public actions and media (ongoing). Peaceful protests, press conferences, tree-planting and clean-up events at threatened sites, and petitions are common and effective. Public assembly is subject to legal restrictions and administrative permissions, and local restrictions on gatherings are sometimes imposed, so take advice, keep everything peaceful and orderly, and arrange legal support in advance.

Step 4c: Prevent failure points. Campaigns fail when they photograph too late, never establish approval status, miss the hearing, win a stay and then demobilise, or let the evidence archive disperse. Assign someone to the monthly record and keep a core committee through the quiet years — because non-compliance returns when attention moves on.

Worked example: a committee that unlocks the strong levers

A neighbourhood on a city's edge sees surveyors, then bulldozers, on farmland that the master plan shows as agricultural, with mature trees along a canal coming down. Anger spreads and a protest is proposed — real energy, no leverage. What converts it into force happens in the first days and is deliberately unglamorous. First, three residents begin a **dated photographic record** of the trees, the earthworks, and the canal bank. Second, the committee obtains the **master plan extract and land-use notification** showing the site as agricultural, and the **land revenue record** showing how it changed hands — the documents that will decide the case. Third, they file a **written complaint with the provincial EPA** asking whether the scheme holds environmental approval and on which instrument, and requesting inspection; the

reply, or the silence, becomes evidence. Fourth, they approach an **environmental lawyer**, who files a **writ petition** in the High Court citing the absence of approval, the conflict with the master plan, and the right to a clean and healthy environment under **Articles 9 and 14**, with an urgent application to **restrain felling and construction**. The court issues notice and stays the works. Fifth — the half most campaigns skip — the committee keeps photographing monthly, and when work quietly resumes months later, that record goes straight back before the court. The lesson generalises: **in Pakistan, the photographs you take in week one and the master plan you obtain in week two are what make the stay possible in month two — and the photographs you keep taking in year two are what make it real.**

Opposition Building Budget: Year-Long Campaign (PKR)

Low by international standards. A committee runs on meetings, printing, travel, official fees for records, and modest testing costs. Legal representation is frequently provided free or at reduced cost by the public-interest bar. The costs that matter most are **small and early**: obtaining the master plan and revenue records, a phone that reliably date-stamps images, and laboratory testing where pollution is alleged. Fund through community contributions and organisational support, and keep transparent accounts.

STEP 4: LEGAL CHALLENGES

Pakistan's legal system offers communities an unusually accessible and inventive set of remedies, and the strategic question is less "can we get into court" than "how fast, with what record, and how do we make the order stick". Three tracks — the administrative route, the specialised forums, and the constitutional writ.

TRACK 1: THE ADMINISTRATIVE ROUTE (fast and free)

- **Objections and the public hearing.** For an EIA, attend the **public hearing**, submit written objections, and keep proof. The agency is expected to consider them, and a hearing held as an empty formality — or not held at all — is a ground of challenge.
- **Complaint to the provincial EPA.** A written complaint requesting **inspection and enforcement** — for operating without approval, breaching conditions, or exceeding the **NEQS** — can produce an inspection or a notice relatively quickly, and creates a record that the agency was informed.
- **Challenge the instrument.** Where a project has been filed as an **IEE** but its scale places it in **Schedule II**, say so formally: forcing a full **EIA with a public hearing** is a substantive win in itself.
- **Objections to the development authority.** Planning and building permissions have their own objection routes, and a scheme conflicting with the **master plan** is vulnerable there as well as in court.

TRACK 2: THE SPECIALISED FORUMS (offences and penalties)

- **The Environmental Tribunal.** A specialised forum with **exclusive jurisdiction over specified environmental offences** under the provincial Act, whose proceedings are deemed judicial and whose decisions are appealable to the **High Court**. Where an operation is polluting in breach of the NEQS or its conditions, this is the forum designed for penalties and, in serious cases, closure.
- **Environmental Magistrates.** Senior civil judges designated under **section 24** try certain contraventions, with appeal to the **Court of Sessions** — a quicker route for lower-level offences.

TRACK 3: THE CONSTITUTIONAL WRIT (the decisive route)

- **Writ petition in the High Court (Article 199).** The principal tool. The High Court can issue notice, **restrain works by interim order**, quash an unlawful approval or planning permission, and direct authorities to perform their duties. Several High Courts have **green benches** for these matters.
- **Article 184(3) in the Supreme Court.** For matters of public importance involving fundamental rights, the Supreme Court has original jurisdiction — the route by which **Shehla Zia** reached it, on a letter from four residents.
- **The constitutional grounds.** The **right to life (Article 9)** and **dignity (Article 14)**, held since **Shehla Zia** to include the right to a **clean and healthy environment**; the **precautionary principle**, imported into Pakistani jurisprudence by the same case; and, since the **Salt Miners** case, the right to water free from pollution.
- **Interim relief — the thing that matters most.** Ask, in the same petition, for an order **restraining felling, earthworks, or construction** pending decision. In a country where implementation lags, the interim order is frequently the real remedy.
- **Ask for supervision.** Where harm is continuing or systemic, ask the court to retain the matter as a **continuing**

mandamus or appoint a **commission** — the remedy the courts fashioned in **Asghar Leghari** and have used on clean air, solid waste, the urban environment, and smog. A commission gives your community a permanent forum and an institutional monitor.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE ROUTE (fast and free)

Public hearing, objections, complaints, and challenges to the instrument — cheap, quick, record-building.

TYPE 2: THE SPECIALISED FORUMS (offences and penalties)

Environmental Tribunal and Environmental Magistrates, for penalties, restraint, and closure.

TYPE 3: THE CONSTITUTIONAL WRIT (the decisive route)

Article 199 in the High Court — or Article 184(3) in the Supreme Court — with interim relief and, where appropriate, a supervisory commission.

Legal Strategy Decision Tree

1. **Is felling, earthwork, or construction happening now?** → File a **writ petition with an application for interim restraint** immediately; nothing else moves fast enough.
2. **Does the project have approval, and on the right instrument?** → If not, that is the cleanest ground, in both the EPA complaint and the petition.
3. **Does the scheme conflict with the master plan or convert agricultural land unlawfully?** → Plead it; planning illegality is often the most demonstrable point.
4. **Is an operation polluting in breach of the NEQS or its conditions?** → Environmental Tribunal, alongside the writ.
5. **Is the harm continuing or systemic?** → Ask for **continuing supervision or a commission**.

Litigation Success Factors

Speed above all; documentary proof of illegality (approval status, master plan, dated photographs); petitioners with a clear connection to the locality plus, where possible, an established association; a specific and supervisable prayer (restrain felling; set aside the approval; direct compliance with conditions); interim relief sought at the outset; experienced counsel who know the relevant bench; and a plan for the supervision phase from the day the order issues.

What to Avoid: Legal Failures

Delaying while the trees come down; failing to check approval status and the instrument; vague prayers a court cannot supervise; ignoring the planning illegality; treating the Tribunal and the writ as alternatives rather than complements; and demobilising when the order arrives.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Pakistan.

Work commenced without environmental approval → EPA enforcement and writ (the cleanest ground). Feed it with: the absence of approval on the file, and dated photographs of the works.

Filed as an IEE where an EIA was required → challenge to the instrument; full process forced. Feed it with: the project's true scale against the schedules.

No public hearing, or a hearing held as a formality → procedural illegality. Feed it with: the notice (or its absence), attendance, and how objections were treated.

Conflict with the master plan or unlawful conversion of agricultural land → writ; permission quashed. Feed it with: the plan extract, the land-use notification, and the revenue record.

Breach of approval conditions or the NEQS → Tribunal penalty; enforcement. Feed it with: the conditions, laboratory results with chain of custody, and dated evidence.

Pollution harming health → the right-to-life argument. Feed it with: exposure evidence, clinic records, and the population affected — the reasoning **Shehla Zia** and the **Salt Miners** case established.

Continuing or systemic harm → continuing mandamus or a commission. Feed it with: your compliance record over time.

The pattern: match one documented fact to one clear ground, **lead with illegality rather than with contested impact prediction**, and always ask for something concrete a court can supervise.

STEP 5: MEDIA STRATEGY

Media matters in Pakistan for a reason specific to the country: courts issue strong orders and appoint commissions, and **publicity is among the most effective forces for getting those orders implemented**. Coverage also reaches the lawyers, professionals, and organisations who will carry the case.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the before-and-after photographs, the master-plan extract showing the land as agricultural or green belt, a named resident whose home floods or whose children are ill, a clear date — the hearing, the felling deadline, the court date — and, where it exists, the order being ignored. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a visible illegality + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel in Pakistan: **air quality and smog, tree felling and the loss of green space, and land conversion, encroachment, and flooding** — with **defiance of a court order** the most potent of all, because it is both newsworthy and directly useful to your case.

Know the Outlets That Cover This Beat

Map the national English and Urdu dailies and their environment reporters, the television channels, the digital outlets that have driven much environmental reporting, and regional and district correspondents who often break these stories first. Build a contact list with names.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer access — to the site, to affected residents, to your documents — and be scrupulously accurate, because an overstatement can be used to discredit the campaign and to threaten legal action.

Why media matters even when it doesn't make the front page

Coverage reaches the professional who will assess your drainage evidence, the lawyer who will file the petition, and the commission member who needs material. In a system whose recurring failure is **non-implementation**, published evidence of an ignored order creates pressure that little else does.

Sample Media Timeline

Launch with the felling or the hearing; refresh at each milestone — the EPA complaint, the petition, the stay, the commission's appointment, each report, and each anniversary of an unimplemented direction.

Media Measurement

Track coverage, but measure what matters: whether the EPA inspects, whether the stay holds, whether a commission engages, and whether the machinery has actually stopped.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. File important ones through the office's receiving branch (keep the stamped, dated copy) or by registered post — proof of filing matters, and a dated complaint later proves the agency knew. Have a lawyer review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [District, Province]: [number] trees felled / farmland converted for [project] — photographs and master plan attached

Dear [name],

Work began at [location] on [date]. The **master plan / land-use notification shows the site as [agricultural / green belt / park]**; we attach the extract and dated photographs from [date] and [date].

We have asked the [Punjab/Sindh/KP/Balochistan] Environmental Protection Agency whether the project holds environmental approval and whether it was filed as an IEE or an EIA (complaint dated [date], copy attached). [Where relevant: no public hearing has been held.]

Around [number] households in [area] face [flooding / loss of farmland / dust and emissions]. I can take you to the site and connect you with residents. Could we speak this week?

[Name] · [Committee] · [phone] · [email]

8B. Complaint to the provincial EPA

Subject: Complaint requesting inspection and enforcement — [project] at [location]

To the Director General, [Province] Environmental Protection Agency:

We, the residents of [area, district], submit this complaint concerning [project] at [location].

1. **Approval.** We request written confirmation whether this project holds **environmental approval**, whether it was processed as an **IEE or an EIA**, and whether a **public hearing** was held.
2. **Illegality.** [Work commenced on [date] before any approval / the project is of a scale requiring an EIA under Schedule II but appears to have been filed as an IEE / [number] mature trees have been felled / effluent is discharged into [channel] in breach of the NEQS.]
3. **Harm.** [Describe: dust and emissions, contamination of drinking water, loss of farmland, blocked drainage and flooding.]

We request **inspection**, a stop-work notice where warranted, enforcement under the [Province] Environmental Protection Act, and a written reply. Dated photographs and the master-plan extract are attached.

[Signatories, committee, address, date]

8C. Written objection at the public hearing

Subject: Objection to the EIA for [project], [Province] EPA reference [number], filed at/before the public hearing of [date]

To the Director General, [Province] EPA:

The residents of [area] object to approval of this project: 1. **Land use.** The site is shown as [agricultural / green belt] in the [master plan / notification] attached; the project conflicts with it. 2. **Air and water.** [Emissions/effluent are inadequately assessed; the nearest homes are [distance] away; [number] households take water from [source].] 3. **Drainage and flooding.** [The scheme blocks the natural drainage of [area], transferring flood risk onto [settlement].] 4. **Trees.** [The project requires felling [number] mature trees; no adequate justification or replacement plan is given.] 5. **Cumulative impacts.** [The report ignores [number] similar installations/schemes within [distance].]

We request that approval be **refused**, or at minimum that the project be reprocessed with a full assessment of these matters.

[Names, addresses, date; retain the stamped copy]

8D. Request to an environmental lawyer or organisation

Subject: Request for legal support — [project] at [location], [Province]

Dear [name/organisation],

The residents of [area] face [description]. We have compiled: dated photographs from [dates]; the master-plan extract and land-use notification; the land revenue record; our complaint to the [Province] EPA dated [date] [and its reply/no reply]; and details of [number] affected households.

We believe the project [has commenced without environmental approval / was wrongly processed as an IEE / conflicts with the master plan]. We would be grateful for your advice and, if appropriate, assistance in filing a **writ petition** with an **application for interim restraint of felling and construction**.

[Name, committee, contact]

8E. Right to information request

Subject: Request under the [Punjab/Sindh/KP/federal] right to information law

To the Public Information Officer, [Province EPA / Development Authority / District Revenue Office]:

Under the applicable right to information law, we request certified copies of: 1. the IEE or EIA, the approval letter and **conditions**, and the record of any **public hearing**, for [project] at [location]; 2. all inspection reports, notices, and self-monitoring reports concerning it; 3. the **master plan / land-use notification** and scheme approval for the site; 4. the land revenue record and any order permitting conversion of agricultural land.

We enclose the prescribed fee and request a reply within the statutory period, failing which we shall appeal to the Information Commission.

[Name, address, date]

8F. Petition to the development authority / district administration

Subject: Petition to halt unlawful development at [location]

To the [Director General, Development Authority / Deputy Commissioner, [district]]:

We, [number] residents of [area], report that [description of works] is being carried out at [location], on land shown as [agricultural/green belt] in the master plan, apparently without [scheme approval / building permission / tree-felling sanction].

We request that you **stop the work**, confirm the approval position in writing, and take action against any unauthorised development. Photographs and the plan extract are attached.

[Signatories, date, contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Residents of [area] move to stop [project] on [agricultural land / green belt]

[Committee], with [organisation], today [filed a complaint with the [Province] EPA / filed a writ petition in the [___] High Court] over [project] at [location]. "[Short, human quote from an affected resident]," said [name].

The master plan shows the site as [designation]. Work began on [date]; [number] mature trees have been felled and [number] households in [area] face [flooding/dust/loss of farmland]. The petition invokes the right to a clean and healthy environment under **Articles 9 and 14** of the Constitution.

Contact: [name, phone]. Photographs, the plan extract, and interviews available on request.

8H. Report of non-compliance with a court order or commission direction

Subject: Non-compliance with the order dated [date] in [case number]

To [the [Province] EPA / the Commission / the Development Authority]:

By order dated [date] in [case number], the [] High Court directed [summarise]. We report that, as of [date], [describe non-compliance: felling resumed; construction continued; treatment plant not operating].

We attach dated photographs taken on [dates] from fixed points, and a chronology. We request immediate action and a written reply, failing which we shall place this record before the Court.

[Committee, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite actual references and dates, and have counsel review anything heading to court. **Timing decides outcomes** — the public hearing window is short and thinly advertised, and where felling or earthworks are under way you should seek **interim restraint immediately** rather than waiting to perfect the evidence. Keep stamped copies of everything you file, and keep public statements to documented facts, routing allegations of wrongdoing through the proper bodies.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a committee or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project — and in Pakistan two of the highest-leverage actions cost almost nothing. In rough order of impact for the effort:

1. **Photograph it now, dated, from fixed points.** Felling and earthworks are fast and irreversible; the dated record from before and during is the backbone of every successful case.
2. **Get the master plan or land-use notification.** If it shows the site as agricultural, green belt, park, or amenity and a scheme is rising there, you have the decisive document.
3. **File a written complaint with the provincial EPA** (Section 8B) asking whether the project holds approval, on which instrument, and whether a public hearing was held. Keep the stamped copy; the reply — or the silence — is evidence.
4. **Attend the public hearing and file written objections** if one is scheduled (Section 8C). It is free, it is the one formal moment, and its absence or emptiness is a ground.
5. **Contact an environmental lawyer or organisation** (Section 8D). They can convert your photographs and plan extract into a **writ petition with an application for interim restraint** — the action that actually stops machinery.
6. **File a right-to-information request** for the approval file and conditions (Section 8E).
7. **Send one accurate email to a reporter** (Section 8A), leading with the before-and-after photographs.

If you do only the first three, you have preserved the evidence, obtained the decisive document, and put the regulator on notice — enough for a lawyer to build on. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Pakistan's system pairs a bold, inventive judiciary with a weak, under-resourced administration — and the gap between them is where campaigns are actually fought. Being honest about this is how you plan something that works.

What This Tilt DOES (and DOESN'T DO)

The tilt means environmental studies are commissioned by proponents; provincial agencies are small and, since devolution, unevenly developed; development authorities regulate schemes they also promote; enforcement is poor and the country's environmental indicators have worsened; and orders are frequently not implemented. It does **not** close the doors: **standing is generous**, **High Courts restrain works quickly**, environmental rights are **constitutional** since **Shehla Zia**, the **precautionary principle** is available doctrine, **Environmental Tribunals** can penalise and close operations, **right-to-information laws** open the files, and courts appoint **commissions** to supervise. The key is to win the interim order and then treat implementation as a second campaign.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Clear illegality, documentary proof, no powerful sponsor.** Here the courts do real work quickly, and an interim

restraint can halt machinery within weeks.

- **Mixed.** A scheme with approval but poor compliance, or a well-connected sponsor. Weight shifts to condition enforcement, the Tribunal, the master-plan argument, media, and persistent documentation.
- **Entrenched.** A large scheme backed by a development authority or politically powerful sponsor, with many beneficiaries. Assume the order will be resisted; plan for **continuing supervision, a commission, repeat applications, and years of documented follow-up**, and treat partial implementation as a genuine win.

Documented Pakistani Dynamics

The record shows both the strength and the wall. **The courtroom is remarkably open** — **Shehla Zia v WAPDA** began as a **letter** from four residents and produced a Supreme Court judgment holding that the rights to life and dignity include a **clean and healthy environment**, importing the **precautionary principle** and establishing the foundation for all later environmental public interest litigation. **The right to life covers pollution and water** — the **Salt Miners** case held the right to water free from pollution to be part of the right to life, ordering remedial measures and halting harmful mining. **Courts supervise rather than merely declare** — in **Asghar Leghari**, a farmer's petition, the Lahore High Court treated the matter as a **rolling review or continuing mandamus**, expressly comparing it to the Philippine writ of *kalikasan*, summoned ministries and departments, and appointed a **Climate Change Commission**; comparable commissions have been appointed on solid waste, clean air, the urban environment, and smog. **But administration has not kept pace** — devolution after the 18th Amendment was not matched by consistent institutional development, EIA administration is widely assessed as having weakened, and Pakistan has ranked at the very bottom of global air-quality indicators while smog engulfs its largest provinces each winter. The recurring lesson: **the bench is willing; the follow-through is yours.**

Assessment Framework — Determine Your Situation

Ask: is there demonstrable illegality — no approval, the wrong instrument, a master-plan conflict, unsanctioned felling? Do we have dated photographs and the plan extract? Is work under way, making interim restraint urgent? Which province, and which High Court? Can we reach an environmental lawyer? Is the harm continuing or systemic, making a **commission** worth requesting? The answers tell you whether to move immediately for restraint or build a slower Tribunal and enforcement case.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Pakistani campaigns rely on peaceful protests, press conferences, memoranda to officials, tree-planting and clean-up events at threatened sites, and petitions. Public assembly is subject to legal restrictions and administrative permissions, and local orders restricting gatherings are sometimes imposed; confronting contractors or security staff at a site can be dangerous, particularly where powerful sponsors are involved. Take legal advice, keep everything peaceful, orderly, and documented on video, arrange legal support in advance for anyone detained, and let the documentation and the courts do the confronting. This guide notes such tactics exist; it does not advise breaking the law.

Honest Assessment

Tilted fights are harder, and Pakistan's particular difficulty is that a strong judgment does not automatically become a changed reality. But "harder" is not "hopeless": Pakistani communities and lawyers have stopped grid stations, halted mining that threatened water catchments, restrained felling and construction, forced schemes back for proper assessment, and built jurisprudence that courts across the region now cite. Concentrate force where the tilt is weakest — provable illegality and an open courtroom — and budget your stamina for the supervision years.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your situation actor by actor, and publish documents rather than accusations.

The consultants and the study. The IEE or EIA is prepared by consultants the proponent engages and pays, competing for repeat work. Signs: a study that omits cumulative effects, understates drainage or emissions, or reads as advocacy. Lever: an independent technical critique, objections at the hearing, and the writ.

The provincial EPA. The weakness is often capacity rather than venality: a small agency, many installations, and studies it cannot verify. Signs: approval despite substantiated objections, a project processed on the wrong instrument, inspections that never happen. Lever: the right-to-information request, the complaint, and judicial review.

Development authorities. The most consequential pressure point in urban Pakistan, because these bodies **both promote and approve schemes**, and land on city fringes is enormously valuable. Signs: a master plan quietly amended, agricultural land converted shortly before a scheme is announced, approvals out of sequence. Lever: the plan and its amendment history, the revenue record, the ombudsman, the Auditor-General, and the writ.

Land revenue records. Whether a plot is agricultural or residential is a records question with vast financial consequences. Signs: mutations shortly before a scheme, conversions without visible orders. Lever: certified copies obtained early, before the record is settled.

Enforcement after orders. The most common failure is not a bribe but **inertia plus interest** — nobody wants to demolish, and everyone benefits from delay. Lever: the monthly compliance record, formal reports of non-compliance (Section 8H), and the supervising commission.

The companies and sponsors. Establish ownership and directorships from the **SECP** register — documentary, provable facts. Watch for land assembled before a scheme became public.

How to act on it, safely. Document from official records before you speak. Route genuine allegations to the **National Accountability Bureau or the provincial anti-corruption establishment** where a real offence is disclosed, the **Auditor-General** for public money, and the **provincial ombudsman** for maladministration — and, above all, into your **writ petition and your non-compliance reports**, where they are protected and consequential. Do not publish unproven accusations about named individuals: it exposes you legally and distracts from the documented illegality that is your strongest ground.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Pakistan the timeline has a distinctive shape: a very fast opening, a relatively quick route into the High Court, and then a long supervision phase where most of the real work lies.

Realistic 12-Month Campaign Timeline

Weeks 1-4 (Emergency documentation). - **Photograph the site immediately**, dated and from fixed points — the priority above all else where felling or earthworks have begun. - Identify the target precisely (Step 1): **which province and statute**, IEE or EIA, the approving EPA, the other permissions, the competent High Court, and every deadline. - Obtain the **master plan or land-use notification** and the **land revenue record**. - Form the committee and **contact an environmental lawyer or organisation**.

Weeks 4-12 (Formal action). - File the **complaint with the provincial EPA** requesting inspection and approval status (Step 4, Track 1), and a **right-to-information request** for the approval file. - Attend the **public hearing** and file written objections if one is scheduled. - Where work is under way, support the filing of a **writ petition with an application for interim restraint** (Track 3). - Petition the **development authority or Deputy Commissioner** to halt unauthorised works. - Hold the community meeting and launch media on the before-and-after images (Steps 3 and 5).

Months 3-6 (Building the case). - Broaden the coalition — professional bodies, academics, neighbouring and downstream communities, the bar association (Step 3, Phase 3). - Complete the legality and impact analysis (Step 2, Layer 2), including **conditions and NEQS compliance** where approval exists. - Commission **laboratory testing** where pollution is alleged; complete the health and economic layer (Step 2, Layer 3). - Consider an **Environmental Tribunal** complaint where an operation is polluting.

Months 6-12 (Order and supervision). - Pursue the petition to interim restraint and then to final orders; where harm is continuing, **ask the court for continuing supervision or a commission**. - **Begin the monthly compliance record the day an order issues** (Step 3, Phase 4), and feed it to any commission appointed. - Report non-compliance formally (Section 8H) to the EPA, the development authority, and the commission. - Sustain media, especially on any gap between order and reality.

Beyond 12 months. - Expect the supervision phase to run for years; maintain the photographic record and a core committee. - Where directions are ignored, return to the court with the documented record. - Watch for works quietly resuming once attention moves on — this is the norm, not the exception.

Warning Signs — Act Early

Surveyors, boundary pillars, or soil-testing rigs appearing; trees marked or felled; earthmoving beginning; a scheme advertised for booking before approvals are visible; a public-hearing notice in a newspaper; a master plan amendment notified. Each is a trigger to photograph **that day** and request the records — because in Pakistan the difference between a strong case and a weak one is usually whether someone documented the site before it changed.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the governing province first; photograph immediately and keep photographing; obtain the master plan and revenue record; establish approval status and the instrument; get an environmental lawyer involved in week one; seek **interim restraint** while harm is preventable; ask for concrete, supervisable orders and, where apt, a **commission**; and treat implementation as a second, longer campaign. Losing campaigns: document too late; file objections with the wrong province's agency; never check approval status; plead vaguely; and disband the day the order arrives.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Pakistan takes several forms, and it is worth naming them so you recognise a win when you get one: - an **interim order restraining felling, earthworks, or construction** while harm is still preventable; - **approval refused, conditioned, or set aside**, or a project forced back for a full EIA with a public hearing; - a **planning permission quashed** for conflicting with the master plan or unlawfully converting agricultural land; - **penalties or closure** through an Environmental Tribunal for breaching conditions or the NEQS; - a **commission appointed** that supervises for years and gives your community a permanent forum; - **enforcement** of an order that had been ignored — often the hardest and most valuable win; - a **precedent established** that other communities use, which is how much of Pakistan's environmental law was built; - and a community with an evidence archive and working relationships with lawyers, ready for the next threat.

Pakistani communities and lawyers have achieved every one of these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the illegality is documented and harm is ongoing, the writ route is almost always worth it — this is a jurisdiction where a letter from four residents changed the constitutional law of the country. If an order has issued, the question is not whether to continue but how to sustain monitoring, and the answer is usually a small, disciplined core doing one photographic round a month and feeding the commission. If works resume, go back to court: repeat applications are normal here, not a sign of failure. What is rarely right is treating the order as the end.

The Bottom Line

Pakistan's system is devolved unevenly across four provincial regimes, its agencies are under-resourced, its enforcement is weak, and its environmental indicators are among the world's worst — yet its courts have gone further than most in the world. Every project needs **environmental approval** from the relevant **provincial EPA**, with an **EIA and a public hearing** for the more damaging categories, and breaches are triable before dedicated **Environmental Tribunals**. Above that sits the decisive lever: since **Shehla Zia v WAPDA**, begun by a letter from four residents, the **right to life and dignity under Articles 9 and 14 includes the right to a clean and healthy environment**, and the **precautionary principle** is part of Pakistani law; the **Salt Miners** case extended it to water free from pollution; and in **Asghar Leghari** a single farmer's petition produced a **continuing mandamus and a Climate Change Commission**, one of a series of judicial commissions the courts have used to supervise implementation. Communities that identify their province, photograph the site the day they learn of it, obtain the master plan and revenue record, establish approval status and the instrument, reach an environmental lawyer early, seek **interim restraint** while harm is preventable, ask for orders a court can supervise and a commission where harm continues, and then keep documenting for as long as it takes have halted machinery, saved land and trees, forced projects back for proper assessment, and built the jurisprudence the next community will use. No single step wins; the combination does. Start today by photographing what you stand to lose, and by asking for the plan that shows what the land was meant to be.